

VCU335752 Dowling, Nicole vs. Leyva, Marycruz

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-09-22

Motion: (1) Demurrer; (2) Ex Parte Application to Strike Demurrer

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Re: Dowling, Nicole vs. Leyva, Marycruz

Case No.: VCU335752

Date: September 22, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: (1) Demurrer; (2) Ex Parte Application to Strike Demurrer

Tentative Ruling:

(1) To overrule the demurrer to the first, second and third causes of action; to sustain the demurrer with leave to amend as to the fourth cause of action for rescission; Plaintiff shall have ten (10) days to file an amended complaint as to this cause of action only; to sustain the demurrer to the fifth through fifteenth causes of action without leave to amend;

(2) No documents appear filed in connection with this motion. The Court takes this hearing off calendar.

(1) Demurrer

Facts

In this matter, Plaintiff sues Defendant Leyva for 1. Intentional Misrepresentation / Fraudulent Inducement 2. Promissory Fraud 3. Fraudulent Suppression / Concealment 4. Relief Based on Rescission and Restitution — Civil Code §§ 1689, 1692 5. Breach of Statutory Duty to Maintain Tenantable Premises — Civil Code §§ 1941, 1941.1 6. Breach of Implied Warranty of Habitability 7. Breach of Covenant of Quiet Enjoyment — Civil Code § 1927 8. Violation of Civil Code § 1940.2 9. Retaliation — Civil Code § 1942.5 10. Interference With Tenant's Use and Occupancy — Civil Code § 789.3(b) 11. Violation of Civil Code § 1954 12. Negligence 13. Negligence Per Se — Evidence Code § 669 14. Intentional Infliction of Emotional Distress 15. Declaratory Relief.

The Court notes here the first three causes of action appear to allege events occurring from 2020 to April 10 or 11, 2025. Plaintiff alleges Defendant fraudulently procured and misused a “residential landlord tenant relationship” and that “Defendant knew Plaintiff intended to disengage from Defendant and knew Plaintiff did not wish to be rushed into a residential lease in Defendant’s county.” (Complaint ¶13, 14.)

Plaintiff further alleges “...from approximately October 2024 through April 2025, Defendant represented to Plaintiff that Defendant would provide financial and logistical assistance concerning housing and relocation” as to first month’s rent and a security deposit as well as rental applications, moving logistics and related expenses. (Complaint ¶¶29, 30, 31.) These representations were made by “...oral communications, text communications, and/or written communications during the period from approximately October 2024 through April 2025.” (Complaint ¶32.)

Further, that “Plaintiff reasonably relied upon Defendant’s representations by delaying independent housing decisions, expending time and resources on housing options discussed with Defendant, communicating logistical and personal information to Defendant, reserving time for moving-related tasks, and continuing temporary lodging arrangements.” (Complaint ¶34.)

“Plaintiff is informed and believes and thereon alleges that Defendant intended to use the appearance of assistance to monitor Plaintiff, obtain information about Plaintiff’s plans, delay Plaintiff’s independent relocation, restrict Plaintiff’s options, and redirect Plaintiff into housing selected or controlled by Defendant.” (Complaint ¶37.)

Thereafter, Plaintiff alleges “repeatedly changed the terms and nature of the promised assistance” as the parties failed to agree on which property to rent. (Complaint ¶¶38-48.)

Further, that Defendant obtained Plaintiffs “passport, birth certificate, Social Security documentation, and other sensitive identifying documents.” (Complaint ¶50.)

Thereafter, Defendant, instead of offering rental assistance, offered to put a down payment on a property which “materially changed the arrangement from assistance with Plaintiff’s independent housing search to Defendant’s acquisition of property selected or controlled by Defendant.” (Complaint ¶¶56-58.)

Around “mid-March 2025, Defendant had already pursued, selected, or substantially committed to acquiring a condominium in a location Defendant knew Plaintiff would not voluntarily choose.” (Complaint ¶63.)

Thereafter, “From approximately March 10, 2025 through April 09, 2025, Defendant intentionally failed to disclose material facts concerning the property Defendant intended to acquire and use as Plaintiff’s housing.” (Complaint ¶65.)

The fourth through fifteenth causes of action appear to relate to events involving an alleged tenancy from April 10 or 11, 2025 or April 29, 2025 execution of a lease through the termination of the tenancy in September 2025.

Defendant moved into the property and executed the lease documents, “under circumstances created by Defendant’s prior course of conduct, including concealment, promissory fraud, economic pressure, withheld information, shifting conditions, and induced reliance.” (Complaint ¶¶80-97.)

Authority and Analysis

Demurrer

The purpose of a demurrer is to test whether a complaint "states facts sufficient to constitute a cause of action upon which relief may be based." (Young v. Gannon (2002) 97 Cal.App.4th 209, 220. To state a cause of action, a plaintiff must allege facts to support his or her claims, and it is improper and insufficient for a plaintiff to simply plead general conclusions. (Careau v. Security Pacific Business Credit, Inc. (1990) 222 Cal.App.3d 11371, 1390.) The complaint must contain facts sufficient to establish every element of that cause of action, and thus a court should sustain the demurrer if "the defendants negate any essential element of a particular cause of action." (Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 879-80)

To determine whether the complaint states facts sufficient to constitute a cause of action, the trial court may consider all material facts pleaded in the complaint and those that arise by reasonable implication therefrom; it may not consider contentions, deductions, or conclusion of fact or law (Moore v. Conliffe (1994) 7 Cal.4th 634, 638.)

It is well-settled that all well-pled material facts in the complaint are assumed to be true for the purpose of the demurrer. (C & H Foods v. Hartford Ins. Co. (1984) 163 Cal.App.3d 1055, 1062) But "doubt in the complaint may be resolved against plaintiff and facts not alleged are presumed not to exist. (Id.)

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) No other extrinsic evidence can be considered (i.e., no "speaking demurrers"). (Ion Equip. Corp. v. Nelson (1980) 110 Cal.App.3d 868, 881.)

First, Second and Third Causes of Action

Defendants central argument is that these causes of action are being actively litigated in Case No. VCU334821. However, the Court's review of its demurrer ruling in that matter indicates events and causes of action alleged regarding the renting of the property at issue, as opposed to alleged acts that occurred prior thereto.

The Court is presented with no other argument as to these causes of action.

The Court, as such, overrules the demurrer

Fourth Cause of Action

This cause of action is for rescission of the residential lease.

NMSBPCSLDHB v. County of Fresno (2007) 152 Cal.App.4th 954, 959-960 states:

"Section 1688 provides that 'A contract is extinguished by its rescission.' ' [A] party to a contract cannot rescind at his pleasure, but only for some one or more of the causes enumerated in section 1689 of the Civil Code.'" [Citation.] The term 'rescission' is not defined in the Civil Code. 'Rescission' means to 'restore the parties to their former position.' [Citations.] 'Rescission' is a 'retroactive termination' of a contract, as compared to 'cancellation,' which is a 'prospective termination.' [Citation.] 'The consequence of rescission is not only the termination of further liability, but also the restoration of the parties to their former positions by requiring each to return whatever consideration has been received.' [Citations.]" (Footnote 2 omitted.)

Here, Defendant argues on demurrer "This cause of action mentions a lease or contract, no contract is attached to the complaint, and no coherent cause of action is stated."

The Court recognizes that a claim for breach of a written contract must be pled in one of three ways: 1) Attach a copy of the agreement, 2) set forth the material terms verbatim or 3) plead the legal effect of the agreement rather than its precise language. (*Construction Protective Services, Inc. v. TIG Specialty Insurance Co.* (2002) 29 Cal.4th 189, 198-199.)

The Court will sustain the demurrer here for failure to state sufficient facts as to the legal effect of the lease with respect to the consideration at issue. As pled, the complaint fails to indicate how rescission would return Plaintiff to Plaintiff's position prior to execution of the lease with respect to return of consideration.

The Court will sustain the demurrer with leave to amend. Plaintiff shall have ten (10) days to file an amended complaint addressing the rescission cause of action only.

Fifth through Fourteenth Causes of Action

As noted above, these causes of action relate to the landlord tenant relationship

"Res judicata, or claim preclusion, prevents relitigation of the same cause of action in a second suit between the same parties or parties in privity with them." (*Zevnik v. Superior Court* (2008) 159 Cal.App.4th 76, 82.) This doctrine precludes the relitigation of legal claims where: "(1) the decision in the prior proceeding is final and on the merits; (2) the present action is on the same cause of action as the prior proceeding; and (3) the parties in the present action or parties in privity with them were parties to the prior proceeding." (*Id.*) "The res judicata effect of an unlawful detainer proceeding is narrow, but is not nonexistent. Generally speaking, an unlawful detainer judgment has limited res judicata force because it typically follows a summary proceeding focused only on deciding a party's right to immediate possession of property. But when litigants to an unlawful detainer proceeding fully try other issues besides the right of possession, the unlawful detainer judgment is conclusive as to those other litigated issues. [Citations.]" (*Gombiner v. Swartz* (2008) 167 Cal.App.4th 1365, 1371.)

"The burden of proving that the requirements for application of res judicata have been met is upon the party seeking to assert it as a bar or estoppel." (*Vella v. Hudgins* (1977) 20 Cal.3d 251, 257.)

As to unlawful detainer matters, unlawful detainer actions are summary in character and ordinarily only claims bearing directly upon the right to immediate possession are cognizable, and cross-complaints and affirmative defenses, legal or equitable, are permitted only if they would preclude removal of a tenant from the premises if successful. (*Id.* at 255.) Therefore, "a judgment in unlawful detainer usually has very limited res judicata effect and will not prevent one who is dispossessed from bringing a subsequent action to resolve questions of title (citations), or to adjudicate other legal and equitable claims between the parties. (citations)" (*Id.*) "The approach courts take to applying collateral estoppel in this [unlawful detainer] setting is broadly consistent with that taken to the collateral estoppel effect given other forms of summary, informal or specialized adjudication. As a general matter in such cases, collateral estoppel will only apply if the party to be bound agreed expressly or impliedly to submit an issue to prior adjudication [citation omitted] and had a full and fair opportunity to litigate [citation omitted] under circumstances affording due process protections [citation omitted]." (*Ayala v. Dawson* (2017) 13 Cal.App.5th 1319, 1327.)

The Court notes that it is immaterial that judgment in the unlawful detainer proceedings was entered in the form of default judgment. (*Martin v. Gen. Fin. Co.* (1966) 239 Cal.App.2d 438, 443 ["A judgment by default is as conclusive as to the issues tendered by the complaint as if it had been rendered after answer filed and trial had on allegations denied by the answer"]; *Murray v. Alaska Airlines, Inc.* (2010) 50 Cal.4th 860, 871 ["[A] judgment of default in a civil proceeding is res judicata as to all issues aptly pleaded in the complaint and defendant is estopped from denying in a subsequent action any allegations contained in the former complaint"].)

Here, the unlawful detainer judgment was entered November 5, 2025.

"An action is deemed to be pending from the time of its commencement until its final determination upon appeal, or until the time for appeal has passed, unless the judgment is sooner satisfied." (Code Civ. Proc., § 1049.) California law is settled that a judgment is not final for purpose of res judicata or collateral estoppel "during the pendency of and until the resolution of the appeal." (Agarwal v. Johnson (1979) 25 Cal.3d 932, 954 n.11; Sandoval v. Superior Court (1983) 140 Cal.App.3d 932, 936-937.)

Under California Rule of Court, rule 8.822, the time to appeal a limited civil case is either 30 days after service of notice of entry of judgment or judgment by either the clerk or a party or 90 days after entry of judgment. (California Rule of Court, rule 8.822(a).)

Here, 90 days have elapsed and the judgment is final.

The causes of action for breach of landlord's statutory duties, breach of habitability and quiet enjoyment, retaliation and interference, negligence and intentional infliction of emotional distress arise from the same conduct surrounding the unlawful detainer matter. California follows the "primary right theory," which provides that "the violation of a single primary right gives rise to but a single cause of action." The primary right is to be distinguished from the legal theory or remedy sought because "even where there are multiple legal theories upon which recovery might be predicated, one injury gives rise to only one claim for relief." (Crowley v. Kattelman (1994) 8 Cal.4th 666, 681-682.) "Numerous cases hold that when there is only one primary right an adverse judgment in the first suit is a bar even though the second suit is based on a different theory." (Id. at 682.)

California permits the introduction of "equitable" and "legal" defenses whenever such defenses, if proven, would have preserved possession in the tenant. (Green v. Superior Court (1974) 10 Cal.3d 616, 634, FN. 19.) Such defenses include retaliatory eviction, habitability, and quiet enjoyment. (Schweiger v. Superior Court (1970) 3 Cal.3d 507, 513-517; Green v. Superior Court (1974) 10 Cal.3d 616; (Pierce v. Nash (1954) 126 Cal. App. 2d 606, 612.)

The causes of action further relate to the notices preceding the unlawful detainer matter, the execution of the writ of possession, access to the property and other matters essential to the unlawful detainer judgment.

Finally, the complaint's allegations support privity between the parties, that Defendants filed the unlawful detainer matter against Plaintiff.

Therefore, the Court sustains the demurrer to the fifth through fourteenth causes of action on the basis of res judicata without leave to amend.

Fifteenth Cause of Action – Declaratory Relief

In order to properly state a cause of action for declaratory relief, pursuant to Code of Civil Procedure section 1060, a plaintiff must set forth facts showing the existence of an actual controversy between the parties relating to their respective legal rights and duties, and request that these rights and duties be adjudged. (Alborzian v. JPMorgan Chase Bank, N.A. (2015) 235 Cal.App.4th 29, 40.)

The elements of declaratory relief are "(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to [Plaintiff's] rights or obligations.... [Citation.]" (Wilson & Wilson v. City Council of Redwood City (2011) 191 Cal.App.4th 1559, 1582.) "The broad discretionary power of the trial court to deny declaratory relief may be invoked by general demurrer." (General of America Ins. Co. v. Lilly (1968) 258 Cal.App.2d 465, 471.)

" 'Declaratory relief operates prospectively, serving to set controversies at rest. If there is a controversy that calls for a declaration of rights, it is no objection that past wrongs are also to be redressed; but there is no basis for declaratory relief where only past wrongs are involved. Hence, where there is an accrued cause of action for an actual breach of contract or

other wrongful act, declaratory relief may be denied.' [Citation.]" (Osseous Technologies of America, Inc. v. DiscoveryOrtho Partners LLC (2010) 191 Cal.App.4th 357, 366.) (emphasis added.)

Here, the fifteenth cause of action seeks declaratory relief as to "past wrongs" involving the eviction process.

Therefore, the Court sustains the demurrer to the fifteenth cause of action without leave to amend.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.